

2. Seasonal Employee
3. Temporary/Part-Time Employee
4. Volunteer
5. Probationary Employee
6. Provisional Appointment

Rule 20 **Probation**

A. Purpose. Probation is a working test period, which is an integral part of the evaluation process. It shall be utilized to observe a new or promoted employee in his/her position and to evaluate his/her work performance on the basis of work standards. It is the final step in the examination process and is utilized for determining whether the employee will achieve regular status (in the case of new, reinstated or re-employed employees) or be separated from employment or in the case of promoted employees, achieve status or demotion.

B. Length of Probationary Period.

1. The probationary period shall be one thousand forty (1,040) hours of actual and continuous service for all employees. Periods of time paid or unpaid leave exceeding five (5) days (consecutive or not consecutive) shall automatically extend the probationary period by the number of days the employee is on leave.

2. An employee shall be deemed to have passed probation at the end of the probationary period if, after completion of a successful evaluation, the Department Director requests the employee be made a regular employee and the Personnel Action Form is signed by the Appointing Authority. If the Department Director does not recommend regular employment and the Appointing Authority does not make a regular appointment, the employee shall be rejected. The rejection would be made before the expiration of the one thousand forty (1,040) hour period.

3. Any probationary period may be extended for up to an additional one thousand forty (1,040) hours at the recommendation of the Department Director and the Human Resources Director, with approval by the City Manager. Whenever possible, the City Manager shall give the probationary employee written notice of the extension of the probationary period prior to the expiration of the probationary period. Failure to give the probationary employee notice of the extension prior to the expiration of the initial probationary period or prior to the expiration of any promotional probationary period shall automatically extend the probationary period.

C. Duration - Promotional Appointment. Promotional appointments shall be subject to probation of one thousand forty (1,040) hours of actual and continuous service. The probationary period is a period of assessment of capabilities for the position to which the

employee is promoted. At the successful conclusion of that probationary period, the employee will be evaluated and may receive a merit increase.

D. At-Will Status of Probationary Employees and Rejection of Probationary Employees.

1. During the initial probationary period, all new hires and re-hires shall be at-will employees who serve at the pleasure of the Appointing Authority and may be rejected at any time without prior notice or right of appeal.

2. During the promotional probationary period, all promotional employees shall be at-will employees as to the promotional appointment, who serve at the pleasure of the Appointing Authority and may be rejected from their probationary promotional appointment at any time without prior notice or right of appeal.

E. Rejection of Promotional Probationary Employees. Any probationary employee rejected during or at the conclusion of a probationary period following a transfer or promotional appointment shall be reinstated to the position from which the employee was promoted if there is a vacancy in the prior position, unless the employee is terminated for a reason which would have been sufficient cause for his/her termination from his/her former position. Should the prior position no longer be available, the employee may be released without cause, and without prior notice or right of appeal.

F. Extension of Probationary Period for Absences from Work. Absences from work for five (5) or more work days during the probationary period, regardless of the reason or cause for the absence, shall automatically and without further notice provided to the employee, cause the probationary period to be extended by the total number of calendar days of the absence. Approved vacation leave will not be considered a break in service for purposes of this Paragraph.

G. Appointment to a Different Classification During Probation. An employee is not disqualified from appointment to a different classification because he/she is presently serving a probationary period. Any such appointment must otherwise comply with these Rules. An employee who has not completed the probationary period at the time of appointment to a different classification will begin a new probationary period. If the employee was serving a new hire probationary period at the time of appointment, the new probationary period will also be a new hire probationary period. If the employee is serving a promotional probationary period at the time of appointment, the new probationary period will be a promotional probationary period.

H. Provisional Employment. Time served under a provisional, temporary, student, seasonal or emergency employment shall not count toward the probationary period.

I. Failure to Complete Probation. A Department Director's recommendation that a probationary employee be rejected or, in the case of a promotion or transfer, be demoted, is subject to approval by the Appointing Authority.

J. Status of Present Employees. The adoption of these Rules shall not affect the probationary status of current employees in the competitive service. Any employee serving a

probationary period upon the effective date of these Rules shall continue to serve in a probationary status until completion of the probationary period established prior to the adoption of these Rules.

Rule 21 **Employee Evaluations**

A. Purpose. Employee performance evaluations provide recognition of effective performance and identify areas that need improvement, as appropriate. Performance evaluations may be used as a basis for completion of probation, salary adjustments, promotions, training and discipline. Performance evaluations may also include a period of performance probation associated with a performance improvement plan and heightened evaluation and counseling. Service of any performance probation period will not modify the at-will status of a probationary employee.

B. Procedure.

1. The Human Resources Director shall provide a method of reporting of individual employee performance, which relates to quantity and quality of work, ability, reliability, attendance and other job-related factors. Performance evaluations should be conducted at least once a year. The Human Resources Director shall prescribe forms for such performance evaluations and shall be responsible for assuring that such evaluations are adequate to provide information to both the employee and the City for the purposes set forth in this Rule. An employee must have a performance evaluation rating of “meets job requirements” in order to be eligible for a merit salary increase or promotion. Deficiencies in performance by an employee may result in a reduction in salary, suspension, demotion or dismissal.

2. Department Directors shall periodically rate the performance of each employee, in accordance with the method of reporting prescribed by the Human Resources Director. Interim reports may be completed as necessary when changes in work performance occur. Each employee shall be informed in such reports of his/her strengths and weaknesses. The employee shall sign the report to acknowledge its receipt and contents. Such signature shall not necessarily mean the employee fully endorses the contents of the report.

3. The performance evaluation shall be presented to the employee prior to its entry in the employee’s personnel file. Upon request, the performance evaluation will be discussed with the employee by the reviewing supervisor or manager. An employee may respond in writing to a performance evaluation within seven (7) calendar days of its receipt. The written response will then be placed with the evaluation in the employee’s personnel file. Each completed evaluation will be maintained in the employee’s personnel file, together with any written response of the employee. An employee does not have the right to appeal or grieve any matter relating to the content of the performance evaluation.

4. Special evaluations may be required at the discretion of either the Department Director with prior approval of the City Manager, or directly by the City Manager.

5. Probationary Employees/New Appointments. Prior to the end of the initial probationary period, the employee is to be evaluated. The outcome of such employee

evaluation will determine whether the employee is rejected or appointed as a “regular employee.” This evaluation is also the means of determining the appropriateness of a merit increase at the end of the probation period. After successfully passing the probationary period, the employee’s anniversary date is set; and the employee receives “regular employee” status, which includes being evaluated on a regular basis.

6. Probationary Employees/Promotional Appointments. An evaluation form will be completed prior to the end of the promotional probationary period to determine “release” to new position or return to the former position if available.

7. Management employees shall be regularly evaluated by the City Manager.

Rule 22 **Changes in Employment Status: Promotion, Transfer, Demotion and Reclassification**

A. Promotion. A vacancy should be filled by promotion at the discretion of the City Manager.

1. In the event an employee is promoted on his/her anniversary date, he/she shall first receive any within-range increase he/she has earned and then the promotional salary adjustment provided.

2. Upon promotion or reclassification, a new anniversary date shall be established for purposes of eligibility for future step increases, as of the effective date of the promotion.

3. If, in the opinion of the Human Resources Director, a vacancy in the position could be filled better by an open competitive examination instead of promotional examination, then he/she shall arrange for an open competitive examination.

B. Voluntary Transfer. A regular employee may initiate a request to transfer to another position in the same or lower classification for which the employee is qualified in the opinion of the Human Resources Director, by submitting a written request to transfer. If the Department Director for whom the employee now works and the Department Director for whom the employee wishes to work both approve the request for voluntary transfer and the City Manager concurs, the employee will be transferred to the new position when the first vacancy becomes available.

C. Involuntary Transfer.

1. The Appointing Authority, or a Department Director with the approval of the Appointing Authority and Human Resources Director, may transfer an employee at any time from one (1) position to another position in a comparable class. For transfer purposes, a comparable class is one (1) with the same maximum salary, involves the performance of similar duties and requires substantially the same basic qualifications. The Department Director must notify the Human Resources Director and the Appointing Authority at least two (2) weeks prior to the effective date of the proposed transfer.

2. No person shall be transferred to a position for which he/she does not possess the minimum qualifications.

3. If the transfer involves the change from one (1) department to another, both Department Directors must consent thereto unless the City Manager orders the transfer for purposes of economy or efficiency.

4. Transfers shall not be used to effectuate a promotion, demotion, advancement or reduction, each of which may be accomplished only as provided elsewhere in these Rules.

D. Voluntary Demotion. An employee may request a voluntary demotion by filing such a request in writing with either the Department Director, Human Resources Director or City Manager, whichever is appropriate. All voluntary demotions must receive the written approval of the City Manager, and a vacancy must be available.

E. Involuntary Demotion.

1. The Appointing Authority may demote an employee whose ability to perform his/her required duties falls below standard (non-disciplinary demotion) or for disciplinary purposes. No employee shall be demoted to a position for which he/she does not possess the minimum qualifications. Written notice of the demotion shall be given to the employee, upon approval by the Human Resources Director. A copy of the notice shall be filed in the employee's personnel file.

2. In the case of demotion of any employee to a class with a lower range, the employee shall be placed in the highest step in the lower salary range, which does not represent a salary increase, unless the demotion is for disciplinary purposes, in which case a salary decrease may be instituted subject to the provisions covering disciplinary actions. If demotion is not for disciplinary purposes, the employee shall retain his/her original anniversary date.

F. Reclassification. Reclassification of a position generally occurs when the duties and responsibilities of the position have significantly increased over time. A reclassification generally occurs as a result of a job analysis which documents that the employee has been assigned new additional and/or higher level duties requiring higher level of knowledge, skill and ability, experience and/or education, etc.

Rule 23 Separation From City Employment

A. Resignation. An employee wishing to leave the competitive service in good standing shall file with the Appointing Authority a written resignation stating the effective date and reason(s) for leaving, at least 14 calendar days prior to leaving the service, unless such time limit is waived by the Appointing Authority. A statement as to the resigned employee's service performance and other pertinent information shall be forwarded to the Human Resources Director. Failure to give notice as required by this Rule shall be cause for denying future

employment by the City. A resignation becomes final when accepted by the Appointing Authority. Once the Appointing Authority has accepted a resignation, it cannot be withdrawn.

B. Job Abandonment. An employee is deemed to have resigned if the employee is absent for five (5) consecutive workdays without prior authorization and without notification during the period of absence. On the third working day of unauthorized absence, the supervisor shall send an overnight letter to the employee's last known address, informing him/her that if he/she fails to report to work within two (2) work days or receive authorization for such absence, the employee will be deemed to have resigned and shall have waived all rights under the City's Personnel Ordinance and these Rules. This Rule notwithstanding, employees absent without leave may be subject to disciplinary action, including termination. Employees separated from employment for job abandonment will be reinstated with such charge removed from the employee's record upon presentation of justification for absence such as severe accident, severe illness, false arrest or mental or physical impairment. Employees have no right to appeal if deemed to have resigned as a result of job abandonment.

C. Disability. An employee may be separated because of an inability by the City to provide a reasonable accommodation through the interactive process. The employee will be given a written pre-separation notice of the reasons for the separation and an opportunity to respond before the separation takes effect.

D. Death. All compensation due an employee shall be payable as of the date of death and shall be paid to the surviving spouse or to the estate of the deceased employee.

E. Retirement. Whenever an employee meets the conditions set forth in the PERS Retirement plan regulations, he/she may elect to retire.

F. Discharge of At-Will Exempt/Management Employees. Subject to the provisions of Rule 20 (Probation) hereof, those employees who are employed at the will of the Appointing Authority in management positions may be removed or terminated at any time without cause or right of appeal. Management positions are listed in General Provisions, Rule 2.A.33.

G. Layoff of Employees. Whenever, in the judgment of the City Manager, it becomes necessary to abolish any position or employment, the employee holding such a position or employment may be laid off or demoted in accordance with Rule 24 (Layoff Policy and Procedures) hereof, without disciplinary action and without the right of appeal.

Rule 24 **Layoff Policy and Procedure**

A. Statement of Intent. Whenever, in the judgment of the City Manager, it becomes necessary to abolish any position or employment, the employee holding such position or employment may be laid off for non-disciplinary reasons and without the right of appeal.

B. Notification. Employees to be laid off shall be given, whenever possible, at least fourteen (14) calendar days' written notice of layoff.

C. Vacancy and Demotion. Except as otherwise provided, whenever there is a reduction in the work force, the Appointing Authority shall first demote to a vacancy, if any, in a lower class for which the employee who is the latest to be laid off in accordance with Paragraph E. hereinbelow is qualified. All persons so demoted shall have their names placed on the re-employment list.

D. Employee Displacement. An employee affected by layoff shall have the right to displace an employee in the same department who has less seniority in a lower class in the same class series or in a lower classification in which the affected employee once had permanent status. For the purpose of this Paragraph and Paragraph E. hereinbelow, seniority includes all periods of full-time service at or above the classification level where the layoff is to occur.

E. Seniority.

1. In order to retreat to a former or lower class, an employee must have more seniority than at least one (1) of the incumbents in the retreat class and request displacement action in writing to the Human Resources Director within five (5) working days of receipt of notice of layoff.

2. Employees retreating to a lower or similar class shall be placed at the salary step representing the least loss of pay. In no case shall the salary be increased above that received in the class from which the employee was laid off.

3. Employees retreating to a lower or similar class shall serve a probationary period in the new class unless they have previously successfully completed a probationary period in the class or a class in the class series.

F. Employment Status.

1. In each class or position, employees shall be laid off according to employment status in the following order: temporary, provisional, probationary and regular.

2. Temporary, provisional and probationary employees shall be laid off according to the needs of the service as determined by the Appointing Authority.

3. In cases where there are two (2) or more permanent employees in the class from which the layoff is to be made, such employees shall be laid off on the basis of performance and seniority. The last evaluation rating in the class, providing such rating has been on file at least thirty (30) days and no more than twelve (12) months prior to layoff, as follows:

- a. First, all employees having ratings of “improvement needed;”
- b. Second, all employees having ratings of “competent;” and
- c. Third, all employees having ratings of “outstanding.”

4. Employees within each rating category shall be laid off in inverse order of seniority in City service.

G. Re-Employment List. The names of persons laid off or demoted in accordance with these Rules shall be entered upon a re-employment list. Lists from different departments or at different times for the same class of position shall be combined into a single list. The Appointing Authority shall use such list when a vacancy arises in the same or lower class of position before certification is made from an eligible list.

H. Duration of Re-Employment List. Names of persons laid off shall be carried on a re-employment list for one (1) year, except that persons appointed to permanent positions of the same level as that which laid off, shall, upon such appointment, be dropped from the list. Persons who refuse re-employment shall be dropped from the list. Persons re-employed in a lower class or on a temporary basis shall be continued on the list for the higher position for one (1) year.

Rule 25 Reinstatement and Re-Employment

A. Reinstatement. With the approval of the City Manager, regular or probationary employees who have resigned with a good employment record may be reinstated within one (1) year of the effective date of resignation, to a vacant position in the same or comparable class. Such employees shall, upon completion of one thousand forty (1,040) hours of continuous service after being rehired, be credited with seniority for the prior service for benefit accrual purposes only. No credit will be earned for the intervening time before being rehired, except as may be required by State or Federal law. The employee's rehire date will remain the date of hire for all other purposes.

B. Re-employment. Employees who are laid off may be re-employed in their former position. Employees recalled within six (6) months after having been laid off will be credited for their prior service for all benefit purposes. No credit will be accorded for the intervening period between the time of layoff and the time of recall.

SECTION 3: COMPENSATION AND BENEFITS

Rule 26 Compensation Plan

A. Compensation. The compensation plan includes the basic salary schedule as adopted by the City Council.

B. Initial Appointment Step. All appointments shall be made at the minimum step within a particular range; however, the City Manager may approve a higher starting rate of compensation at his/her discretion.

C. Anniversary Date. The anniversary date shall be the annual date of hire or the date the employee acquires regular status or the date of promotion. The employee evaluation shall be regulated by these dates.

D. Advancement in Salary. The employee will be considered for a merit increase when probation is completed and on annual anniversary date thereafter. Merit increases shall be granted at the sole discretion of the City Manager only as a result of a written evaluation of continued meritorious service and with the continued improvement by the employee in the effective performance of the duties of the position held. Increases for acceptable performance shall be at least two and one-half percent (2-1/2%) and no more than five percent (5%). No salary increase shall be made so as to exceed any maximum rate established in the pay plan for the class to which the employee's position is allocated.

E. Part-Time and Temporary Part-Time Employees. Such employees shall be paid at an hourly rate.

F. Promotion. Any employee who is promoted to a position having a higher range than the position he/she occupies, shall commence work in the higher range at a step that at minimum is an increase of five percent (5%) above the rate he/she was receiving prior to promotion.

G. Demotion Pay Rate. When a regular employee is demoted to a position for which the employee is qualified, his/her salary shall be set at the step rate in the lower pay range which provides the smallest decrease in pay.

H. Pay Periods. All employees shall be paid every two (2) weeks. The pay period for an employee on the City's four-ten (4-10) schedule will be a period of fourteen (14) consecutive calendar days, beginning at 12:01 p.m. on Friday and ending at 12:00 noon on the Friday 14 days after. Step increases or promotions shall be effective at the beginning of the pay period in which they fall.

I. Reclassification.

1. If an employee is reclassified upward, the employee will receive an increase in salary not to exceed five percent (5%).

2. If an employee is reclassified downward, an employee's salary will be frozen until the compensation for the lower classification exceeds the salary of the employee.

J. Emergency Appointment - Working Out of Class. No employee shall be required to perform duties which are not closely related, both in kind of work and in level of responsibility, to duties formally assigned to positions in his/her class, except on a short term, temporary or emergency basis. Employees who are given an emergency or temporary appointment to a higher classification, which involves duties requiring a greater level of skills, may be compensated as follows:

1. To qualify for out-of-class pay, an employee must be assuming substantially the full range of duties and responsibilities of the higher-level position. Out-of-class pay is not authorized, for example, if the organization of a work unit is such that each unit employee carries on his/her normal duties during the temporary absence of a supervisor, without a need for direction, which the supervisor would provide on a longer-term basis.